

Complaint included a declaration of diligence, where the process server indicated they spoke, at the address, to a woman identifying herself as the spouse of the Defendant, and who indicated Defendant resided at that address. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,350.25, less any credits for payments received.

The Defendant made payments of \$780.

Costs are \$0.

The Stipulated Agreement was filed 9/19/25.

A dismissal was entered on 9/19/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,320.

Plaintiff to file order on Motion, as well as submit Judgment.

15. 9:00 AM CASE NUMBER: L25-08198
CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRIS CHATMAN
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER**
STIPULATION FILED BY PLN ON 12/30/25
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

In the instant matter, Plaintiff indicates they served Defendant notice of this motion via mail. But there is no evidence to support that this is in fact Defendant's address. There's no evidence, for instance, that Defendant had previously been served at this address with any prior pleadings, such as the Summons and Complaint.

Disposition

Motion is continued to 6/9/26, 9am, for Plaintiff to serve Defendant.